

SENATE BILL 2089

By Crowe

AN ACT to amend Tennessee Code Annotated, Title 39;
Title 47 and Title 55, relative to the retention of
forms of identification.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 55, Chapter 17, Part 1, is amended by
adding the following as a new section:

(a) As used in this section, "identification":

(1) Means a valid identification document that bears the name and
photograph of a person and that is issued by a state or federal agency authorized
to issue identification credentials; and

(2) Includes a valid driver license or permit, photo identification license,
or social security card.

(b) A motor vehicle dealer or its agents, employees, or contractors, or a motor
vehicle salesperson, shall not knowingly retain a copy, in an electronic or other format, of
a person's identification.

(c) This section does not prohibit a motor vehicle dealer or its agents,
employees, or contractors, or a motor vehicle salesperson, from requesting a person to
present a form of identification in its normal course of business.

(d) This section does not apply to a motor vehicle dealer who is appointed by a
person to manage a vehicle transaction on the person's behalf, including a title or
registration transaction, pursuant to a valid power of attorney executed by the person on
a form prescribed by the commissioner of revenue granting the motor vehicle dealer
authority to sign the application for a vehicle transaction, as provided by the Uniform
Durable Power of Attorney Act, compiled in title 34, chapter 6, part 1, and § 55-3-103,

and who is required by the commissioner to submit and retain a copy of the person's identification for purposes of carrying out the vehicle transaction; provided, that the identification must not be retained for longer than necessary to carry out the vehicle transaction.

(e) A violation of subsection (b) is a Class B misdemeanor, punishable by a fine of one thousand dollars (\$1,000).

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.